

ROCKET STORIES^k

IN THIS ISSUE • ANDERSON • BUDRYS • LESSER

JULY 1953 35c



ROCKET STORIES^k

IN THIS ISSUE • ANDERSON • BUDRYS • LESSER

JULY 1953 35¢



The Project Gutenberg eBook of Picnic

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Picnic

Author: Stephen Marlowe

Illustrator: Joseph Eberle

Release date: July 24, 2022 [eBook #68600]

Most recently updated: October 18, 2024

Language: English

Original publication: United States: Space Publications, Inc., 1953

Other information and formats: www.gutenberg.org/ebooks/68600

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>.

*** START OF THE PROJECT GUTENBERG EBOOK PICNIC ***

Picnic

BY MILTON LESSER

ILLUSTRATED BY EBERLE

**Burt was tired of taking his family out to the asteroids
for a picnic every week-end. But with a wife and
two spoiled brats to goad him into the regular routine,
what could a man do? Only, as it turned out,
this particular picnic wasn't quite regular routine!**

**[Transcriber's Note: This etext was produced from
Rocket Stories, July 1953.**

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

Burt reached out for the stud that would fire the fore-rockets, but a small white hand already rested on the button.

"Let me, Daddy. You promised—"

When he wanted something, Johnny's voice took on that wailing quality. He wanted something now; Burt had promised him that he could land the ship.

"Okay," Burt said. "Press it—now. Now!"

Johnny took his hand off the stud. "Don't holler at *me*," he told his father severely.

Burt swore under his breath and jammed down on the stud. A red light overhead winked on and off furiously, and he knew that if he had waited another moment they would have plowed into the asteroid like a battering ram into a tub of soft butter.

"Marcia, oh Marcia!" he turned and called over his shoulder to his wife.

She stuck her head in through the galley door. "Dear," she said, "let me make these sandwiches, will you? I don't tell you how to pilot the ship, but I'll never get this lunch all packed unless you let me alone."

Burt scowled. "That's the general idea. I want to be let alone, too. So if you'll just take your darling little son the devil out of here—"

"Why, Burt Rogers! Johnny's only eight, and he's quite harmless. If I had known ten years ago that you didn't like children—"

Burt shook his head. "Joan's fine. Joan is two years younger than Johnny, but she doesn't bother anyone. She just sits in the galley and—"

"Hah!" Marcia snorted. "She sits in the galley and digs her arms into the mayonnaise tub up to the elbows, that's all."

"Well, then they're both brats."

"Burt!"

"They are, and it's your fault, Marcia. You always say let the children express themselves, we can't frustrate them or cut them short in any way—so look what happens."

"You look what happens," Marcia declared dramatically. "If we don't pull out of the dive in a couple of seconds, we'll splatter all over that planetoid."

"Let me land it, let me land it!" wailed Johnny.

Burt spun to the controls, and his fingers flicked rapidly over the buttons. He was sweating when he brought the ship down with a none-too-gentle dump. He heard Joan's whimper from inside the galley, and Marcia began to tell him what a lousy pilot he was. Johnny was playing cops and robbers with the topography through the foreport.

"This," Burt said, "is the last week-end picnic for me. Definitely the last."

Marcia opened her mouth to say something, but Burt cut her off. "I don't want to hear any more about it. You'll just have to find another way for the kids to express themselves...."

They usually found an asteroid with a weird terrain, and just looking at it through the portable bubble-sphere kept the kids pretty busy. This time, however, things were different. The asteroid was only twenty miles in diameter, yet it had an atmosphere of oxygen and inert gases, and it was comfortably warm. No bubble-sphere this time to keep the kids hemmed in—and Johnny and Joan would be roving all over the uncharted surface.

Burt shuddered. What a job he'd have today. But then, this was the last time: they could talk themselves blue in the face and plead, but this was the last time.... And maybe there'd be life, since there was air and warmth. But that was silly: a body this size would not have life, and even if Johnny took advantage of the low gravity and jumped thirty feet in the air, he wouldn't get hurt—he'd float down gently as a feather.

Marcia pouted as she spread the table-cloth out on a flat expanse of rock. Burt put his hand on her shoulder, but she pulled away from him. "Brats, eh?" she muttered.

"Well, maybe I didn't mean it that way. But you just name me another father at Marsport who takes his family up in a spaceship every Sunday to go picnicking. And a different asteroid each week. Ed Jones sits on his fanny

all week-end, and Tom Ferris spends Saturday night in the gambling joints so he's dead on his feet Sunday and can hardly stay awake during the church services."

Marcia took his hand and placed it back on her shoulder. "Okay, dear—you're wonderful. But that doesn't give you permission to call my children 'brats'."

Burt smiled. "My children, too. And, well—if they're not brats, we've certainly spoiled them...."

Johnny's voice cut through the thin air. "Pop. Hey, pop. C'mere!"

Burt got up, laughing. "So that's how you teach your kids to call their old man, eh?"

Burt walked toward the incredibly close horizon. You could see the curvature of the tiny planet quite distinctly, and in a tight circle all around them the pale blue sky came down and met the jumble of rocks and crystal which was the surface of the asteroid. Johnny had called from someplace beyond the horizon, and as he walked, Burt heard him again: "You deaf, pop? C'mere!"

Johnny was standing, little hands on little hips, near a mound of dull metal. No, it wasn't a mound—it was battered and twisted and rusted, but the tear-drop shape was unmistakable. A spaceship....

Burt found the ancient airlock and pushed through the rusted door. He looked at the control panel. "It's an old Havelock," he muttered, "I'll be damned. They haven't made these in twenty years."

He went outside again, where Johnny still stood.

"Pretty nifty, eh pop?" the boy said.

Burt called: "Marcia. Hey, Marcia. C'mere!"

Leading Joan by her hand, Marcia reached them in a few minutes. "Don't wonder why Johnny called you like that, Burt Rogers. Just don't you wonder at all. He's a chip off the old block, that's what he is."

Joan said, "Mama, what's a chip off the old block?"

"Later, dear, later. What's on your mind, Burt?"

He gestured. "This—"

Marcia stared. "Why, it's—it's a spaceship!"

"It is," Johnny nodded. "An old Havelock Cruiser. And I found it."

"But these people must have crashed here years ago."

"Yeah. Look, Marcia, you better take the kids away while I look for the remains. Got to find them and report to the police at Marsport when we get back, but there's no reason why the kids have to see."

Marcia took Johnny's hand in one of her own and Joan's in the other, and she walked away with them beyond the close horizon. "Okay, Burt," she called back. "You can start looking."

Burt did not like the task ahead of him, but with general space travel still less than half a century old, lost ships were no rarity, and he considered himself morally obligated to find the bodies. He was back in the Havelock now, and it was a small ship. He covered it in five minutes, and he scratched his head. No one ... there were all the signs of occupation, but no one was around. Dishes for three were set on the plastalloy table, with a blubbery green mass on each plate, billowing over on to the table. That meant that there had been food on those dishes when, quite suddenly, the three people had disappeared. It also meant that bacteria, at least, flourished on this asteroid. And—what else? Why had the three people disappeared, why had they vanished utterly with a meal waiting for them on the table—

"Burt! Burt!" It was Marcia, and she was screaming.

Burt poked his head outside the broken airlock. Marcia was running toward the Havelock. "Burt—get out. To me, quick!"

Burt looked up. Toward the other horizon was a slight hill, not a very high one, but enough for Marcia to have seen it from beyond the horizon. And

rolling down that hill now, gathering speed as it came, was a massive boulder.

Heading straight for the Havelock—

Burt scrambled up out of the airlock, cursing when his trousers caught on an edge of rusted metal. He tugged at them and heard them rip. Then he was clear and running toward Marcia.

With a great grinding crashing sound the rock plowed into the Havelock, smashing it and crushing the half-corroded metal flat. Burt looked back at a big cloud of dust, and when it cleared, the Havelock looked like so much scrap. If he had been inside he would have been crushed to a pulp. Less than a pulp, they never would have found him.

"Burt! Burt—" Marcia was sobbing against his chest. "Of all the freak accidents—"

"Uh-uh." He shook his head as they walked back to the broken remains of the Havelock. "That was no accident."

He pointed to the little hill. "That hasn't got a slope of more than ten degrees, honey. It couldn't have been an accident. The rock never could have gathered so much momentum on that hill."

"Not an accident?"

"No. Someone—something—pushed that rock."

The boulder was unmoving now, fifty yards from the scrap heap which had been the Havelock Cruiser.

Marcia said, "Someone pushed *that*? It's as big as the ship, Burt. It weighs five tons if it weighs an ounce. Maybe in this slight gravity—"

Burt shook his head. "Even that wouldn't account for it. That rock was pushed."

Marcia clung to him, shuddering. "Burt, let's get the children and leave this place!"

He nodded, and he was about to call Johnny, when something bounded high into the air over the horizon, then floated down, gently. "Johnny!" Marcia cried.

"He's detached his equalizer," Burt said. "That crazy kid—"

Each of them had one of the little gravity equalizers at his belt. It was a clever invention: you wore it in space flight, and you never became weightless as space-travelers did in the old days. And you wore it on any planet, creating earth-norm gravity. Now Johnny had detached his, and he weighed no more than a couple of pounds here on the tiny asteroid.

Something else bounded high into the air, came floating down. Johnny called: "Lookit us. We're birds, that's what we are. We're birds!"

Burt knew that Johnny had removed Joan's equalizer as well. Two forms came bouncing toward them over the wild terrain. "Just press the button to the left," Burt pleaded. "Press it to the left like a good boy, Johnny. You do it and we'll give you a present."

"Naa. This is fun. You try and get me."

But Joan was crying, and she did not know what to do. Every time she landed, she tried to take a step forward and she soared high into the air again. Closer bounded the two figures, and Johnny soared right by, almost near enough to touch. Burt dove for him, and came up clutching air. Johnny bounded away again, and, calling threats and taunts behind him, he disappeared over the hill, in the direction from which the boulder had come.

Marcia had been luckier. She held Joan by one arm now, re-adjusting the equalizer with her free hand. Joan sat down, crying. "I have Joan," Marcia told her husband. "You go and get Johnny, Burt. Get him—quick. I don't like this place."

Burt didn't like it, either. *Something had pushed that rock.*

Marcia screamed. "Burt—look."

The rocks and rubble near the remains of the Havelock were rumbling and grinding. Burt heard a great cracking sound, like a huge dead branch breaking. The ground near the Havelock trembled and the shock of it reached them. Burt sat down hard, and he saw Joan and Marcia fall in a heap.

He tried to get up, but he couldn't; the ground was still trembling. A crack appeared near the Havelock, and it crawled along the ground slowly,

crookedly. It crawled at a snail's pace, less than a snail's pace—but it moved. And it grew. It was as wide as Burt's arm. Wider. It grew.

Suddenly, it gaped wide, and the grinding and rumbling was louder. It opened into a cavernous maw—right under the Havelock. For a moment the Havelock stood poised, as if on air—and then the battered; flattened ship disappeared within the hole, clattering against the walls as it fell.

The ground shuddered again, violently; the hole became a crack, closing in upon itself. It disappeared altogether, and only the rough terrain remained.

But the Havelock was gone.

Marcia stood up. "An earthquake?" She trembled.

"On a planetoid twenty miles in diameter? Don't be silly. You'd need an unstable interior for an earthquake—and this little globe cooled and stabilized long ago."

"Yes? Then why is it warm?"

She had him there, and Burt didn't know. Why was the asteroid warm? If he knew the answer to that, he might know the answer to a lot of things.

"This is stupid, Burt. Let's stop talking and find Johnny. He could be half way around the asteroid by now, or more."

Burt shook his head. "We can't all go and look. Joan would delay us. You stay here with her, Marcia—or, better still, get back to the ship with her and stay inside. I'll find Johnny and bring him back. Then we'll get the devil out of here."

Marcia smiled wanly. "That I'd like. And Burt?"

"Yeah, kid?"

"Be careful...."

Burt felt like a kangaroo. Only no earthly kangaroo had ever taken leaps like this. He had flicked the switch of the gravity equalizer over to the right, shutting off the power. Then he had taken off in great leaps, looking for Johnny. His jumps carried him forty or fifty feet in the air, and then he floated down, almost weightless.

With concentration, he could have avoided those high leaps. He could have propelled himself forward, fifty and sixty feet at a jump, but he did not want to. The horizon was too close, and the only way he could find Johnny was like this. As he reached the apex of each leap, he could see much further than he could on the ground, and he was looking for the boy.

Once he thought he saw Johnny, a tiny blob way off in the distance, but he came down from his jump too soon, and he could not be sure. He called loudly, and everything else was quiet, and his voice was almost frightening. Soon the ground felt spongy to him, but he shrugged it off. As soon as he landed, he was off again, and it probably was his imagination. Hard rock did not become spongy like this, not suddenly, without warning, with no possible explanation.

But once he landed hard, and he rested a moment, panting. He moved his feet and they slopped about, like on a muddy field. He reached down carefully. One wrong move would upset his equilibrium and he'd go shooting off into the air. He touched the ground, and it was wet. He pushed, and he felt his hand sinking in, slowly. Fascinated, he pushed again. His hand disappeared to the wrist.

Something was trying to suck him down further, and he tugged. He pulled his hand out with a loud slopping sound, and instinctively he jumped away. He soared into the air again, and when he came down, it was only for a moment—just long enough to leap.

The ground was spongy. And when he was standing there, with his hand immersed to the wrist, the soft spongy stuff had been pulsing, throbbing.

Almost as if it were alive....

His mind did not tackle the problem further. Ahead he saw Johnny—now it was more than his imagination; Johnny was there, leaping into the air ahead of him.

Burt reached the apex of his flight, cupped his hands and yelled through them:

"Johnny! Johnny!"

"Hi, pop!"

The voice came back faintly, playfully.

"Johnny, when you touch ground next time, turn that switch to the left."

"Naa—I'm having fun."

"When I get you, Johnny...."

"Aw, okay. Kill joy. What a worry wart."

Apparently, Johnny had turned on his equalizer. Burt saw him on the ground, waiting, and three big leaps brought him there.

Now Johnny was crying.

"What the devil are you crying for? You've jumped around enough—"

"Pop, please. I'm sorry. Get me outa here!"

Johnny was stuck. He was in the spongy ground, up to his ankles. The stuff sucked around his shins, drawing him down further every second, like quicksand. Burt could feel it pulsing as he landed, but it did not suck him in. With the equalizer off, he weighed much less than Johnny did, and now he was tugging at the boy, pulling at his shoulders, grabbing him under the armpits and tugging, tugging....

Johnny came loose suddenly, and Burt soared with him several feet into the air. On the way up, he switched the boy's equalizer off again, and Johnny said:

"You just told me not to, now you do it yourself. What a pop."

Johnny was spoiled and Johnny was precocious, but Burt thought of neither now. Johnny was nothing more than a little bundle which he had to get back to the spaceship. And then they had to leave, all four of them.

The spaceship ... Marcia did not know how to pilot it, she couldn't lift it off the ground. And the sucking, spongy stuff might engulf the ship, take it

down into some unknown womb of the world. They'd be marooned. Marcia and Joan—

All of them.

The trip back was a wild one. Burt tucked his son under one arm and leaped. He kept low to the ground this time, skimming its surface, sometimes leaping as much as seventy feet with one bounding stride. With each stride, the ground became more spongy, and Burt realized with a sinking heart that the surface could never hold the spaceship up. It would be the same as if it had plunged through the gaping maw in the hard rock with the Havelock—either way it would be gone.

Johnny liked the ride. Every time they landed, he would say, "Again, pop. Again!" And wordless, Burt would leap once more.

Once he jumped high and he thought he saw the spaceship gleaming in the rays of the sun. But that was impossible. It would surely sink.

And then he came down and he did see it. It was there, on a hard expanse of flat rock, where he had left it. Here the ground seemed normal—

He heard Marcia's scream before he saw her. Then she came around the hull of the spaceship, dragging Joan. Screaming again, she fell flat.

Something whizzed by her head, and even from this distance Burt could see that it was a rock the size of a watermelon. She got up again, and she ran forward, but then a whole shower of rocks came after her, smaller this time, two handfuls of egg-sized rocks, thrown by an invisible giant.

He had to be invisible—Burt could see no one. Yet the rocks were being thrown, somehow. Or—the thought suddenly occurred to Burt—they were throwing themselves. The rocks moved under their own power. It was a wild thought and a crazy one, but it made sense. Every other part of the planetoid was soft and spongy. But here—near the ship—the surface was still hard. And rocks were being thrown. Burt could tell this had been happening for a long time, because the hull of the ship was scarred from the fusilade.

It was unreasonable to suppose that this tiny area, alone of the entire sphere, could not become spongy. Then there was a reason why it remained hard—and where there was reason there was sentience. And further, why hadn't a big stone been thrown, one large enough to crush their Pacemaker as the Havelock had been crushed? There certainly were enough stones around—

Everything indicated a *game*. Something was playing with them. They were easy prey, they were dead ducks—but something was having fun with them first. They were goners, they didn't have a chance, and that something needed the activity and the recreation. It was a sadistic game. Back on earth, some of the kids had stripped the wings off flies, made them hop about dizzily, helplessly, until they tired of the sport. And then they had crushed them....

The planetoid was playing with them!

Burt called: "Get inside the ship, Marcia! Inside!"

"I can't. If I stand still long enough to manipulate the lock, these stones will get me. Burt—"

"I'm coming!"

He switched on his equalizer and Johnny's, and still holding the boy under one arm, he plunged across the rock. Something reached up and tripped him, and he sprawled out flat. He had fallen over a small out-cropping of rock—where no out-cropping had been before.

He got up, and then he reached the Pacemaker. He pushed Johnny in front of him, and the boy stood with his sister. Marcia looked up:

"How are we going to get inside, Burt?"

"You just open the lock. Come on, now."

She turned her back and went to work on the dials. Burt stood there, waiting for the stones that would come, hunching himself over, trying to cover the three of them—

No stones came.

Instead, he heard an ominous cracking sound, a rumbling....

Off where the spongy ground joined the hard rock a crack appeared. It was small, but it grew. And it moved. It snaked along the ground, slowly, twisting, heading for the ship. Now it was half as wide as Johnny's body, and now it was wider.

Burt pushed Marcia away and attacked the lock with clumsy fingers. His hand trembled, but Marcia huddled against the side of the hull, sobbing, and he knew she could not have handled the dials in time.

Three around and then four over: damn it, there's the blue light, but he still needed the white and red. Five around and one over—ah, the white! Two around and six over—red, white, and blue!

He pushed Johnny and Joan in front of him, then he grabbed Marcia around the waist and hurled her inside. The crack was half as wide as the Pacemaker now, rumbling, churning—and growing.

He ran to the controls and he kicked the engine over. He felt the ship poise on the brink, as he had seen the Havelock do before it had plunged within a similar hole. He felt the ship totter, and then he fired the studs for all the aft rockets at once. The ship roared once and he was shoved back hard in his seat. Then they hurtled furiously sky-ward.

Below them now, the planetoid was a writhing, twisting mass, shooting pulpy tentacles miles into space, groping for them, seeking. But they were out of reach. Burt circled a few times, watching the stone globe which now was a living entity.



Behind him, Marcia watched too. "It's—alive," she said.

"Yes. Sleeping when we arrived, but it's alive now. Twenty years ago it ate the people of that Havelock, and then it became sluggish. Evidently it does not need much food, for all its vast bulk. It became sluggish and it slept, and when we landed we stirred it and it finished the job on that Havelock. Then it wanted us...."

"But *alive*?"

"Why not?" Burt said. "Part plant, part animal, it's warm with its own life. It breathes slowly, holding the thin atmosphere to its body, growing plants for photosynthesis when it needs oxygen, a perfectly co-ordinated being."

"So big, Burt. It's so big."

"Sure. On Mars the native life is bigger than on earth. Why?"

"Why? I don't know."

"Because Mars has a weaker gravity pull, being smaller than the earth. And here, out in space, there is no gravity to keep life down. A plant grows and grows as long as it lives, unlike an animal. This huge asteroid has been growing for ages, millions of years, maybe. What's to stop it? No gravity pressing down. Perhaps it can live purely on the mineral matter of the meteors which fall. Maybe it's only a seed, with food-matter stored up inside. Who knows?"

Johnny and Joan came out from the galley. Joan said:

"Mama, I'm hungry."

Marcia laughed. "We never did have that picnic, Burt."

"Uh-huh. You're right—so we didn't. But this damn asteroid almost did—on us."

"Papa," Johnny said, "let's land someplace and have a picnic."

"Go to hell," Burt said, forgetting he was speaking to a boy, his boy.

"Burt! Then you wonder why Johnny curses. Just watch your language in front of the children, Burt Rogers!"

"Okay," he said. "But no more picnics. I'm going to report this thing to the police, and they'll blow it out of the sky with atomite. Then we'll have a nice meal at home. But no more picnics, ever. I'll take the kids to the Canalport swimming pool on week-ends—half-way around the planet. But no more picnics."

"Please, papa," Johnny said.

Marcia nodded. "Look. He's being polite."

Burt sighed. He knew he could get away with it this week-end. But later on in the month—or certainly next month—there would be more picnics.

*** END OF THE PROJECT GUTENBERG EBOOK PICNIC ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.